

Application for Hardship Waiver

Yuav tsum xa Daim Ntawv Thov Kev Zam Kev Txom Nyem (Daim Ntawv Thov) thiab cov ntaub ntawv pov thawj no yog xav thov kev zam ntawm tus neeg thov feem ntawm qhov kev thov vaj tse. Tus neeg thov kev pab 60 hnuv tim hnuv uas tau teev hawm rau ntawm Daim Ntawv Ceeb Toom ntawm Lub Chaw Saib Xyuas Kev Noj Qab Haus Huv Huv (Lub Chaw Sau / DHCS)

los xa Daim Ntawv Thov. Tag nrho cov ntaub ntawv thov hauv Daim Ntawv Thov yog kev ua; txawm li cas los xij, tsis tau muab cov ntaub ntawv tseeb los ua pov thawj qhov kev nyuaj siab yuav ua rau tsis lees muaj Daim Ntawv Thov. Yuav tsum kos npe rau daim ntawv thov. Nws tsis tsim nyog rau tus neeg thov xa cov ntaub ntawv uas Lub Chaw tau txais kev pabcuam. Lub Chaw khaws cia txoj cai thov cov ntaub ntawv ntxiv.

Yuav tsis muaj kev nyuaj siab thaum tus neeg tuag lossis tus neeg thov ua rau muaj kev ntshov siab los ntawm kev siv cov txheej txheem npaj vaj tse los yog tiv thaiv cov paj tam kom tsis txhob muaj vaj tse rov qab.

Please mail completed forms to:
Department of Health Care Services
Estate Recovery Section
P.O. Box 997425, MS 4720
Sacramento, CA 95899-7425

Yog tias koj muaj lus nug txog daim foos no, thov hu rau tus neeg sawv cev sau nqi uas tau muab txoj haujlwm rau koj rooj plaub lossis tus Estate Recovery mainline at 916-650-0490.

Si prefiere acceso a esta forma en Español, por favor visite nuestra pagina de web <http://www.dhcs.ca.gov/services/Pages/SubstantialHardshipCriteria.aspx> o puede contactar a su tus sawv cev ntawm colección para solicitar una copia.

All applicants must complete Sections A, B, C and G. Applicants must also submit requested documentation and complete other sections, as specified in Section C.

Section A - Decedent's Estate Information

Ua kom tiav tag nrho cov ntaub ntawv txog vaj tse siv tau.

• Lub Npe Tus Neeg Tuag:

• Tus lej nyiaj ntawm DHCS:

Did the decedent have a spouse or registered domestic partner who died before the decedent and who was also on Medi-Cal?

Yes
No
If yes, please provide the following:

• Predeceased Spouse/Registered Domestic Partner's Name:

• DHCS Account Number:

Tshooj A txuas ntxiv mus:

Is the estate property held in a trust?

Puas muaj ib daim ntawv yuav?

Real Property/House(s)

Market Value: \$

Mortgage Owed: \$

(Attach deed, mortgage statement and appraisal or comparative market analysis that values the property at the time of the decedent's death, if applicable)

Mobile Home(s)

Market Value: \$

Mortgage Owed: \$

(Attach registration, mortgage statement and appraisal that values the property at the time of the decedent's death, if applicable)

Is/Was the property listed for sale?

Yes

No

If yes, provide a copy of the listing agreement. If the property has sold, attach a copy of the settlement statement.

Other Assets in the decedent's name at the time of death (Attach copies of statements, contracts, policies, etc.):

Bank Account(s) (Attach statement(s) as of date of death)

Annuities (Attach contract with proof of purchase date) Value: \$

Life Insurance Policy

Value: \$

Beneficiary(s):

(Attach copy of paperwork showing named beneficiary(s), if applicable)

Retirement Accounts (CD/IRA/401K/Other)

Value: \$

Beneficiary(s):

(Attach copy of paperwork showing named beneficiary(s), if applicable)

Section A continued:

Stocks/Bonds/Notes/Other Personal Property (automobiles, etc.) in the decedent's name at the time of death

Type of Other Property:
Value: \$

Type of Other Property:
Value: \$

Type of Other Property:
Value: \$

Type of Other Property:
Value: \$

Type of Other Property:
Value: \$

Are there estate expenses?

Yes
No

(Bills or expenses paid by the applicant after the decedent's death on his/her behalf, including burial expenses, out-of-pocket administration expenses, such as mortgage payments, attorney fees, taxes, insurance, etc.) Please list expenses and provide copies of receipts or statements.

Type of Expense:
Amount: \$

Type of Expense:
Amount: \$

Hom Kev Siv Nyiaj: Tus Nqi: \$

Hom Kev Siv Nyiaj: Tus Nqi: \$

Type of Expense:
Amount: \$

Section B - Applicant Information

Name (First, Middle, Last)
Social Security Number
Date of Birth (mm/dd/yyyy)

Kev Sib Raug Zoo Rau Tus Neeg Tuag

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Section C Continued:

- Proof that the property is not habitable; documentation may include an inspection report from a licensed contractor documenting the repairs needed and associated costs to make the property habitable, etc.

Please complete:

- "Certification," Section G, on page 7.
- If criterion 6A is the only basis for the applicant's request, skip Sections D, E and F.

OR

6.
B) The equity in the real property is needed to acquire the necessities of life, such as food, clothing, shelter, or medical care.

Thov xa cov ntaub ntawv no:

- Proof that there is equity in the estate real property; documentation may include an appraisal or comparative market analysis, mortgage statement, etc.

Please complete:

- "Cov Nyiaj Tau Los Txhua Hli ntawm Tus Neeg Thov," Ntu D, nyob rau nplooj ntawv 6 thiab "Cov Nyiaj Tau Los Ntawm Tus Thov," "Cov Nyiaj Tau Los Ntawm Tus Neeg Thov," thiab "Daim Ntawv Pov Thawj," Ntu E, F thiab G, nyob rau nplooj ntawv 7.

Yog hais tias tus neeg tuag tau tas sim neej rau hnuv tim 1 Lub Ib Hlis, 2017 thiab tom qab ntawd, cov lus hais txog Kev Zam Txim Rau Kev Nyuaj Siab hauv qab no yuav siv tau.

7.
Cov yeej yeej yuav raug muab rov qab muaj ib lub tsev uas muaj nqis rau kuv *.

Please submit:

- Cov ntaub ntawv pov thawj los ua pov thawj tus nqi ntawm lub tsev nyob rau hnuv uas tus neeg tuag hnuv tuag. Cov ntaub ntawv yuav tsum yog daim ntawv ntawm Daim Ntawv Teev Khoom Muag thiab Kev saib xyuas los ntawm cov txheej txheem probate uas qhia txog tus nqi ntawm lub tsev raws li txiav txim siab los ntawm tus neeg txiav txim siab probate, los yog kev ntsuas ntsuas raug cai ua tiav los ntawm tus neeg soj ntsuam uas muaj ntawv tso cai

Please complete:

- "Certification," Section G, on page 7.
- If criterion 7 is the only basis for the applicant's request, skip Sections D, E and F.

*A homestead of modest value is one whose fair market value is 50% or less of the median price of homes in the county where the homestead is located, as of the date of the decedent's death.

Ntu D - Cov Nyiaj Tau Los Ntawm Tus Neeg Thov

Please complete Section D for Criteria 2 and 6B, as instructed under Section C, and submit the documentation listed below (as applicable). Skip this section if you are only applying based on Section C, criteria 1, 3, 4, 5 or 6A.

Your Gross Pay: \$
Spouse's/Other Adult's Gross Pay: \$

Rents/Contribution Paid to You: \$
Retirement/Pensions: \$

Social Security: \$
Disability: \$
Public Assistance \$

Tau Txiaj Ntsig Los Ntawm Koj Lub Lag Luam: \$
Cov Nyiaj Tau Los: \$

Other Income (Source): Dividends, Interest, Child Support, Alimony, Tips, etc. \$
TOTAL MONTHLY INCOME: \$

Please submit copies of: most recent tax statements, (IRS Form 1040, 1040E, 1040A); two most recent pay stubs for each adult member of the household; two most recent retirement/pension stubs; Supplemental Security Income or Social Security Disability Insurance award letter.

Section E - Applicant's Monthly Expenses

Thov ua kom tiav E rau cov 6B, raws li cov lus qhia hauv C, thiab xa cov ntaub ntawv hauv qab no (yog siv tau).
Dhau ntu no yog tias koj tsuas yog thov
raws li txoj C, cov 1, 2, 3, 4, 5 los 6A.

Mortgage/Rent: \$
Alimony/Child Support: \$
Auto Expenses: \$

Tag Nrho Cov Nyiaj Them Txhua Hli (Daim Npav Qiv Nyiaj, Cov Nyiaj Qiv Kawm Ntawv, thiab lwm yam): \$
Lwm Cov Nyiaj Siv: \$

TOTAL MONTHLY EXPENSES: \$

Please submit copies of mortgage statements or rent receipts.

Section F - Applicant's Value of Assets

Thov ua kom haum F rau cov 6B, raws li qhia hauv C. Dhau ntu no tias koj tsuas yog thov raws li C, cov 1, 2, 3, 4, 5 los 6A.

Real Property Value: \$
Checking/Savings Account: \$

IRA/401K: \$
Life Insurance/Annuities: \$
Rental Property: \$

Automobiles: \$
Other Assets: \$
TOTAL ASSETS: \$

Saib G - Daim Ntawv Pov Thawj

Kuv nkag siab tias cov ntaub ntawv tau muab rau hauv Daim Ntawv Thov no thiab cov ntaub ntawv xa tuaj yuav raug tshawb nrhiav thiab tshawb xyuas thiab cov ntaub ntawv ntiv lossis cov ntaub ntawv pov thawj yuav raug thov. Kuv tshaj tawm raws li kev tiv thaiv ntawm kev dag tias cov ntaub ntawv muab rau hauv daim ntawv no thiab cov ntaub ntawv xa tuaj yog qhov tseeb thiab raug raws li kuv qhov kev paub zoo tshaj plaws.

(yog hais tias nyob ntawm tus neeg thov)
Kos Npe ntawm Tus Neeg
Ua Daim Ntawv Sau
Sau Sau Lub Npe Tag Nrho
Tus Xov Tooj
Hnub Tim

PRIVACY STATEMENT

The Information Practices Act of 1977 (California Civil Code, section 1798.1 et seq.) and the Federal Privacy Act of 1974 (Title 5, United States Code, section 552a et seq.) require that this notice be provided when collecting personal information from individuals.

The Estate Recovery Section of the California Department of Health Care Services' (Department) Third Party Liability and Recovery Division is seeking the information requested on the Application for Hardship Waiver pursuant to the authority granted to the Department by Welfare and Institutions Code section 14009.5, and Title 22, California Code of Regulations, section 50960 et seq. The person responsible for maintaining records of the information obtained from the Application is the Chief of the Third Party Liability and Recovery Division, MS 4718, P.O. Box 997425 Sacramento, CA, 95899-7425.

The information requested in the Application is voluntary; however, failure to completely and accurately provide the information may result in a denial of the Application. The principal purpose for which the information will be used is to determine whether an applicant qualifies for a hardship waiver of the Department's estate recovery claim and to verify information provided in the Application in order to circumvent fraud against the Medi-Cal program.

The Department does not have any known or foreseeable disclosures that may be made of the information. The applicant has a right of access to records containing personal information maintained by the Department.